

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

INTERMODAL MOTOR CARRIERS CONFERENCE, AMERICAN TRUCKING ASSOCIATIONS, INC., *Complainant*

v.

OCEAN CARRIER EQUIPMENT MANAGEMENT ASSOCIATION INC.; CONSOLIDATED CHASSIS MANAGEMENT, LLC; CMA CGM S.A.; COSCO SHIPPING LINES CO. LTD.; EVERGREEN LINE JOINT SERVICE AGREEMENT, FMC NO. 011982; HAPAG-LLOYD AG; HMM CO. LTD.; MAERSK A/S; MSC MEDITERRANEAN SHIPPING COMPANY S.A.; OCEAN NETWORK EXPRESS PTE. LTD.; WAN HAI LINES LTD.; YANG MING MARINE TRANSPORT CORP.; AND ZIM INTEGRATED SHIPPING SERVICES, *Respondents*.

DOCKET NO. 20-14

Served: December 7, 2020

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge*.

ORDER GRANTING RESPONDENTS' MOTION FOR AN EXTENSION OF TIME TO FILE AN ANSWER

On December 2, 2020, Respondents filed a motion seeking an extension of time ("Extension Motion") to file their answer, which is due on December 8, 2020, and to file the joint status report, which is due on December 18, 2020. Respondents request the extension to allow a ruling on their December 3, 2020, motion seeking leave to file an interlocutory appeal and to stay the proceeding. Respondents argue that the parties should have the benefit of a ruling on the motion seeking leave to appeal the denial of a motion to dismiss and that this would avoid inefficiencies and "allow the case to proceed in a more orderly fashion." Extension Motion at 2.

On December 4, 2020, Complainant filed a response to Respondents' motion requesting an extension ("Extension Opposition"). Complainant notes that the complaint was filed in August 2020, almost four months ago, and asserts that Respondents fail to provide good cause to delay starting discovery or to identify any prejudice that Respondents would suffer. Extension Opposition at 2. Complainant indicates that it will oppose both the interlocutory appeal and the stay and asserts that there is no justification to further delay the proceedings. *Id.*

A brief delay in responding to the complaint and beginning discovery is reasonable and will allow the motion for leave to file an interlocutory appeal and a stay to be considered after it has been fully briefed by the parties. Good cause having been stated, it is hereby ordered that Respondents' motion seeking an extension of time to file an answer and joint status report be **GRANTED**. Revised deadlines for responding to the complaint and filing a joint status report will be provided in the order ruling on the motion for leave to file an interlocutory appeal.



Erin M. Wirth
Chief Administrative Law Judge